

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
July 13, 2026, 8:30 AM, Department 2
101 Maple Street, Auburn**

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NOTICE: CHANGE OF CALENDAR DEPARTMENT AND DATES

Beginning July 6, 2026, the Probate Calendar will be heard Mondays, 8:30 a.m., in Department 2, located at the Historic Courthouse, 101 Maple Street, Auburn.

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **July 13, 2026, 8:30 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are not a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated the court day prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0004910 Roberson Revocable Trust - In Re the

Appearance is required for continued hearing on motion to set aside judgment approving settlement agreement or, in the alternative, to enforce settlement agreement.

2. S-PR-0010926 In Re the Donald M & Barbara Brewer Fam Rev Trust

6th trusts accounts are recommended for approval as prayed.

3. S-PR-0011676 In Re the Estate of Gaines, Roberta Lyn

Appearance is required for hearing on petition for final distribution.

The court cannot determine that petitioner has notice that the hearing date was moved from July 10 to July 13 at the direction of the presiding judge. The only notification of the change was returned to the court as undeliverable on May 26, 2026.

4. S-PR-0011823 In Re the 2000 Dagenbach Fam Liv Trust

Appearance is required for continued hearing on petition suspend and remove trustee, appoint successor, compel account of trustee and of agent, instruct trustee and agent, and to surcharge trustee.

5. S-PR-0012062 In Re the Estate of Trocha, Robert John

Appearances of personal representative Caylin Trocha and of counsel are required for continued status hearing re estate / reserved hearing for final distribution.

Missing petition for final distribution and notice of hearing.

Note: failure to timely close the estate is grounds for removal of the administrator. Failure to timely close the estate is also grounds to reduce or disallow all personal representative and counsel fees. Prob.C. §§ 12204–12205.

6. S-PR-0012652 In Re the Estate of Plympton, James Timothy Jr.

It is recommended the petition for final distribution and instructions be denied, as follows.

Petitioner incorrectly calculates personal representative and attorney fees. Disposition of estate vehicles by repossession does not result in a total loss to the estate. The repossessing creditor credits each automobile indebtedness account with the proceeds of the repossession sale, resulting in either a gain or loss on sale depending on the amount of proceeds. Where repossessing creditor neither claims a deficiency amount or refunds surplus proceeds, the repossession is scheduled in an account as a no-gain / no-loss disposition for the full asset value. Personal representative and attorney fees should be recalculated after this account error is resolved.

Extraordinary attorney fees are not supported by a sufficient C.R.C. 7.702 declaration. Counsel's declaration does not include any of the showing required by C.R.C. 7.702.

The estate includes insufficient cash to pay personal representative and attorney fees as requested. Clarification or revision is needed; the court will not ordinarily award fees where there is no ready means to pay them.

Revised account is needed. Account includes two disbursements described as "mistaken" use of the estate checking account without explanation or repayment of misused funds. Account improper includes Schedule E, liabilities, as credits. Assets on hand are not liabilities of the estate; any liabilities that require disclosure are not credits but instead are listed solely on an auxiliary schedule. Prob.C. §§ 1061(a)(10) & (b), 1062(f), 1063(a) & 1063(g).

The estate is not in a condition to be closed. Three filed creditor claims (Ally Bank, Verizon, JP Morgan Chase) were recently rejected by personal representative. Creditors have 90 days from rejection to bring an action on rejected claim. Until the claims are resolved, estate administration cannot be closed. Additionally, petitioner seeks to pay herself for unfiled and time-barred creditor claims (see discussion, below), to the exclusion of the pending claims with no legal support for the request to favor herself over other creditors.

Petitioner's request for distribution of the estate's interest in real property is contrary to law. Petitioner is not an heir or devisee of decedent and has no right whatsoever to distribution of assets of the estate.

To the extent petitioner's request to receive estate property may be characterized as a request to approve disbursements to petitioner for creditor claims, the request fails and must be denied. Petitioner seeks repayment of \$10,000 and \$146,617.00 used to purchase estate real property with decedent, as well as \$42,916.66 used to pay off certain debts of decedent before the real property was purchased. Petitioner offers no legal or factual support whatsoever for these claims. Even if decedent were liable for repayment of these amounts (e.g., if they had been enforceable loans by petitioner), no creditor claims of any kind were filed by petitioner and any such claims are long since time-barred. Prob.C. § 9200(a); C.C.P. § 366.2. Neither the court nor personal representative may approve time-barred creditor claims. Prob.C. § 9253.

To the extent petitioner's request to receive estate property may be characterized as a request to approve disbursements to petitioner for advances to the estate, the request appears well supported in part. Post-death loan payments are reasonably characterized as advances to the estate for costs of administration / maintenance of estate assets as to decedent's 1/2 liability for the real property indebtedness. On the information provided in the petition (loan payments through December 2023), it appears the advances total \$39,828.92 (the other one-half applying only to personal representative's personal liability for 1/2 of the real property indebtedness). Petitioner does not allege whether similar monthly advances have continued since January 2026. Advances to the estate appear to be payable before creditor claims. As above, these are disbursements from the estate and not distributions. Even if the court were to approve disbursement for such reimbursable

advances to the estate, petitioner has shown no legal basis to make such disbursement in kind where estate administration also requires payment of many other costs and claims.

Missing guardian ad litem or other fiduciary for minor heir Gabriel Plimpton. Petitioner proposes to eliminate all of minor's interest in the estate on unsupportable grounds, as above. Minor's rights and interests cannot be compromised without a suitable fiduciary having notice and opportunity to be heard. Petitioner has not shown that minor's parent is a guardian of the estate or other fiduciary who may appear to represent minor's interests in these proceedings.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

7. S-PR-0012937 In Re the Estate of Bakos, John Edward MD

Petition to administer estate (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Petition to administer estate (M Bakos)

Appearance is required for continued hearing on petition to administer estate.

Will contest (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Missing 30 days' service of summons to all persons entitled to service of notice of the petition to probate the will. Prob.C. § 8250(a).

Ex parte application for trial preference

Appearance is required for hearing on ex parte application for trial preference. It is recommended the application be denied.

No creditor claim of any person is before the court; even if it were, no such claim would be tried within this decedent's estate case. No creditor, including the claim of applicant Betty Bakos, has been rejected by a personal representative. If Betty Bakos's creditor claim had been rejected (or is deemed rejected by claimant), the aggrieved creditor is then required to "commence[] an action on the claim." Prob.C. § 9353. No such action has been commenced; had it been commenced, it would proceed as its own action (usually a civil complaint). No such separate action has been filed.

Moreover, it appears the probate court has no power to adjudicate Betty Bakos's claims within this decedent's estate proceeding because those claims are pending Bakos's

dissolution action. The court granted dissolution in S-DR-00463311, *Bakos v. Bakos*, from the bench on October 13, 2015. Judgment of dissolution was later filed March 29, 2017. Both the October 13, 2015, minutes and the court's 2017 written judgment expressly reserved determination of *all* other issues; this reservation was *mandatory* under Fam.C. § 2337(f), and remains in effect.

It is clearly established in California law that the death of a former spouse *after* a bifurcated dissolution judgment where the court reserved jurisdiction to determine all other issues does not divest the family court of any of its authority to try all related matters, including property characterization, division, etc. As set forth in *In re Marriage of Hilke* (1992) 4 Cal.4th 215, 220:

The death of one of the spouses abates a cause of action for dissolution, but *does not* deprive the court of its retained jurisdiction to determine the collateral property rights if the court has previously rendered judgment dissolving the marriage.

Id., citing *McClenny v. Super. Court* (1964) 62 Cal.2d 140, 144, and *Kinsler v. Super. Court* (1981) 121 Cal.App.3d 808, 811–812. As set forth in *Kinsler*,

When the trial court . . . entered judgment dissolving the status of the marriage it properly reserved jurisdiction to decide the collateral property issues. . . . [Having so done, husband's] subsequent death neither abated the remainder of the dissolution action nor deprived the court of its retained jurisdiction to dispose of the remaining issues. . . . The court should have merely substituted in place of the deceased the [personal representative of the] estate of the deceased as party to *the dissolution proceeding*.

Kinsler, *supra*, at 812 (emphasis added). See also CEB Practice Under the California Family Code: Dissolution, Legal Separation, Nullity § 17.42; CEB Crossover Issues in Estate Planning and Family Law § 4.72; and CEB California Decedent Estate Practice §§ 29.28 & 29.58. As Betty Bakos concedes, her claims are the dissolution action claims to characterize and divide assets, and to make related determinations.

Thus the claims of Betty Bakos do not appear to be before the court, both because there is no jurisdiction within this proceeding to hear them and because they have not reached any procedural stage where they can be tried. Ex parte relief should be denied.

Further, a determination of what property is in the estate (or whether there is even any property to be administered) is immaterial to the petitions to administer the estate and probate the will, and to the will contest. Neither of the administration petitions nor the will contest depends in any way on the existence or non-existence of property in the estate or on the validity of any claim against decedent or the estate.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing.

8. S-PR-0013014 In Re the Estate of Skinner, Delbert Leon

Petitioner and counsel response is needed: I&A estate value and property-on-hand value as shown in the petition suggest substantial gains on sale of securities or other source of substantial increase in estate value. Fees calculation omits any additional property received, receipts, or gains on sale. Waiver of excess or unclaimed fees should be required from petitioner and counsel.

It is recommended the court require waivers of bond from Brent Campbell, Terri Laetari, and personal representative of the estate of Larry Laetari. The petition suggests these all may be beneficiaries of the beneficiary trust. To accept a waiver of personal representative account solely from personal representative would permit personal representative to conceal misfeasance that may otherwise be revealed through the requirement to account.

9. S-PR-0013097 In Re the 2002 Rusch & Sandra Delong Rev Trust

Appearance is required for continued hearing on petition to remove trustee and for other relief.

Current status—including status of settlement—is needed.

10. S-PR-0013390 In Re the Astleford Rev Liv Trust

Appearance is required for continued hearing on petition to determine trust terms and for other relief.

Current status is needed.

11. S-PR-0013523 In Re the Estate of Wilmes, Elizabeth Dawn

Clarification is needed: the petition shows the estate lacks cash resources to pay requested attorney fees. The court will not ordinarily approve fees until petitioner shows how fees are to be paid.

12. S-PR-0013715 In Re the Robert M & Karen L Bittle Fam Rev Trust

Petition to compel trustee account, remove trustee, surcharge trustee

Appearance is required for continued hearing on petition to compel trustee account, remove trustee, surcharge trustee.

Current status is needed.

1st trustee account

Appearance is required for hearing on 1st trustee account.
Current status is needed.

13. S-PR-0013722 In Re the Donald R. Hay 2016 Fam Trust

Petition to confirm trustee, invalidate actions of purported trustee, instructions, determination of trust property, recovery of trust property and for other relief

Appearance is required for continued hearing on petition to confirm trustee and for other relief.

Missing service to AIM Realty, Inc.; notice should be required to agent for service or a suitable director or officer of AIM Realty, Inc.

Current status—including status of settlement—is needed.

Petition to remove trustee, appoint successor co-trustees, compel accounts and for other relief

Appearance is required for hearing on petition to remove trustee, appoint successor co-trustees, and for other relief.

Missing notice of hearing. Missing service of notice of hearing.

Current status—including status of settlement—is needed.

14. S-PR-0013876 In Re the John & Barbara Wilbourn Fam 1981 Rev Trust

Petition to instruct trustee, compel account, and for other relief

Appearance is required for continued hearing on petition to instruct trustee, compel account, and determine breach of trust.

Trustee account

Appearance is required for hearing on trustee account.

Missing notice of hearing. Missing service of notice of hearing.

Trustee response is needed: receipts schedule shows 6 unknown receipts totaling \$20,000, supported only by trustee's assumption as to the source of each receipt.

Trustee response is needed: home sale entries are not correctly scheduled. The home sold for a gain on sale of \$220,000, requiring a gain schedule under charges. Costs

of sale, real property maintenance and preparation expenditures, and the like, are disbursements. Gains and losses on sale are not adjusted for expenses of sale or other expenses.

15. S-PR-0013964 In Re the Estate of Ceccarelli, Victor Anthony

Missing waivers of bond by suitable fiduciary for Thomas Ceccarelli, Logan Ceccarelli, and Isabella Ceccarelli. The petition for appointment of administrator with will annexed and to probate the will does not include a final determination of any rights to succession; waivers of bond are ordinarily required of all devisees and all heirs.

16. S-PR-0014052 In Re the Estate of Lassley, Donald Watson Jr.

Petition to determine succession to primary residence is recommended for approval as prayed.

17. S-PR-0014061 In Re the Estate of Triolo, Kristin Deann

Missing sufficient notice of hearing and service of notice of hearing for spousal property petition. Notice of hearing as filed and served relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice and service are needed.

Missing Attachment 7 (see ¶ 7), the facts supporting the requested relief.

Revised Attachment 7b is needed. Petitioner requested only relief under ¶¶ 1b & 7b—confirmation of survivor's community property interest. Petitioner does not pray for any determination of decedent's community or separate property passing to him (see unused ¶¶ 1a & 7a). Attachment 7b must include only survivor's community property and may not include any property of decedent.

Clarification is needed: petitioner alleges decedent was survived by 3 children (¶¶ 5a(1) & 9), but also no issue (¶¶ 6a & 6b). Children of decedent are issue of decedent.

18. S-PR-0014062 In Re the Estate of Burgard, Douglas

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

19. S-PR-0014065 In Re the Estate of Voyles, Sandra Kay

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

Missing required allegations at ¶ 5a(7)–(8) (issue of predeceased child(ren)).

Missing relationship(s) of persons named in ¶ 8 to decedent.

20. S-PR-0014067 In Re the Alice B. Bowles Trust

Appearance is required for hearing on petition to interpret trust terms, appoint successor trustee, and for other relief.

Clarification is needed: petitioner alleges Barbara Porter and Keith Porter are or were two interested relatives of settlor, without describing any relationship between settlor and the Porters. Further, although petitioner alleges Keith Porter died approximately 40 years ago, notice was sent to a Keith Porter without explanation.

If the foregoing issue(s) are clarified to the court's satisfaction, the following additional calendar notes are provided:

The requested trust interpretation as to the share for Timothy McClean is contrary to the terms of the trust. The trust share for Timothy McClean vested immediately upon settlor's death because Timothy survived; it now passes to his estate. Petitioner offers no legal or factual basis for distribution other than to Timothy's estate.

The requested trust interpretation as to the share for Paul McClean is consonant with the trust's direction that his failure survive causes his share to pass to his surviving spouse.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are offered to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

21. S-PR-0014068 In Re the Estate of McClean, Timothy Alan

Missing notice of hearing for petition to administer estate. Missing proof of service of notice of hearing.

Petitioner response and / or court determination is needed as to request to waive bond: petitioner identifies as properties of the estate an income interest from a trust and two out-of-state mineral interests. Petitioner requests full IAEA powers, which requires the value of real property in the estate to be bonded. However, out-of-state real property cannot be administered in domiciliary proceedings and California and generally requires ancillary administration in the state where the real property is located.

Note: missing signed Duties form (DE-147). The clerk cannot issue any letters until the signed Duties form is filed. C.R.C. 7.150.

22. S-PR-0014069 In Re the Estate of Phillips, Patricia Ann

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

Missing relationship of petitioner to decedent (¶ 3g(2)(c)).

23. S-PR-0014070 In Re the Estate of Brehm, Peter Frank

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

If the court were to excuse further notice, notice remains outstanding to Sean McNabb. The counsel declaration filed March 13 is not a proof of service of notice of hearing.

Missing required allegations at ¶ 5a(3)–(4) (RDP).

Missing proof of subscribing witness(es). Will is not self-proving: witness statement is neither a declaration nor an affidavit.

24. S-PR-0014071 In Re the Estate of Lear, Tammy C.

Missing Attachment 7 (factual basis for relief) to spousal property petition. See ¶ 7.

Petitioner response is requested: the petition request determination of succession to and ownership of certain LLC interests "including" certain real property interests of the LLCs. LLC members do not own LLC assets. *CSHV 1999 Harrison, LLC v. County of Alameda* (2023) 92 CalApp.5th 117, 139. Ownership or succession to properties owned by the LLC is not justiciable in a spousal property petition. The only assets of decedent and survivor identified in the petition are the LLC membership interests themselves.

Petitioner response is requested: the petition appears to request reformation of two deeds granting certain real properties to two LLCs. The forms of relief available through a spousal property petition do not include reformation of deeds.

25. S-PR-0014075 In Re the David Edward Cocreham Jr Trust

Appearance is required for hearing on petition to instruct trustee and to compel trustee account.

Missing notice of hearing. Missing 30 days' service of notice of hearing. Prob.C. § 17203. Service of the petition without notice of hearing is insufficient.

26. S-PR-0014076 In Re the Estate of Fortino, James William

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

Missing relationship of person listed in ¶ 8 to decedent.

Missing relationship of petitioner to decedent (¶¶ 3g(2)(c) & 8).

Missing any grounds for waiver of bond.

Clarification is needed: petitioner included an attachment to the petition stating grounds for appointment as special administrator. Missing any prayer for appointment of special administrator (caption; ¶¶ 2b(4) & 3g(3)). Special administration is intended to be temporary and serve "immediate . . . preservation of the estate." Prob.C. § 8540; see also § 8546(a). It is not a substitute for general estate administration.

27. S-PR-0014077 In Re the Harrison Fam Liv Trust

Appearance is required for hearing on petition to determine invalidity of trust and amendments and for other relief.

Missing sufficient notice of hearing and service of notice of hearing. Notice of hearing as filed and served, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice and service are needed.